

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
REGINALD BROWN,

Plaintiff,

Index No.

- against -

SUMMONS

DATE INDEX NUMBER
PURCHASED:
PLAINTIFF DESIGNATES
BRONX COUNTY AS
PLACE OF TRIAL
BASIS OF VENUE IS
PLAINTIFF'S
RESIDENCE AT 920
TRINITY AVENUE,
BRONX COUNTY

THE CITY OF NEW YORK,
POLICE OFFICER MIKE SUAREZ, SHIELD NUMBER 5841
and POLICE OFFICER ANTHONY GRASSO, SHIELD NUMBER 16983
and POLICE OFFICER PRODAM SHIELD 3617
and POLICE OFFICERS
JOHN DOE 1 - 5,

Defendants,
-----X

To the above-named defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer within twenty (20) days after the service (or within thirty (30) days after the service if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgement will be taken against you by default for the relief sought in the Complaint.

The Plaintiff designates Bronx County as the place of trial, which is also the county in which Plaintiff resides, and where incidents described in this Complaint occurred.

Dated: New York, New York

November 7, 2017

GOLDBERG & ALLEN, LLP
Attorneys' Name: Gerald Allen

Gerald Allen, Esq.
49 West 37th Street, 7th Floor
New York, New York 10018
(212) 766-3366

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY CIVIL TERM:

-----X
REGINALD BROWN,

Plaintiff,

Index No.

- against -

**VERIFIED
COMPLAINT**
DATE INDEX NUMBER
PURCHASED:

THE CITY OF NEW YORK, POLICE OFFICER MIKE SUAREZ
SHIELD 5841, POLICE OFFICER ANTHONY GRASSO
SHIELD 16983, POLICE OFFICER PRODAM, SHIELD 3617
and POLICE OFFICERS JOHN DOE 1 - 5,

Defendants,
-----X

PARTIES, JURISDICTION and VENUE

1. Plaintiff, Reginald Brown, a former taxi driver and an auxiliary police officer in New York City, is a forty-six year old male and is a citizen of the State of New York, and resident of Bronx County.
2. Defendant, City of New York ("NYC"), is a municipality within the State of New York, which includes Bronx County. NYC maintains a police department, the New York City Police Department ("NYPD"), which is an agency of the municipality.
3. Upon information and belief, Defendant Police Officer Mike Suarez, shield number 5841, was at all relevant times an officer with the NYPD, assigned to the Housing Bureau NYPD. Suarez is being sued in both his official and individual capacities.

4. Upon information and belief, Defendant Police Officer Anthony Grasso, Shield Number 16983, was at all relevant times an officer with the NYPD, assigned to Highway 2. Grasso is being sued in both his individual and official capacities.
- 4 a. Upon information and belief, Defendant Police Officer Prodam, Shield Number 3617, was at all relevant times an officer with the NYPD assigned to the Highway 1. Prodam is being sued both in his individual and official capacities.
5. Police Officers John Doe 1-5 ("Doe 1-5"), are and were at all relevant times police officers with the NYPD assigned to the Housing Police in Bronx County and whose actual names are unknown at this time. Does 1-5 are being sued in both their official and individual capacities.
6. This court has jurisdiction over this action as Plaintiff resides in Bronx County and the damages sought exceed the maximum jurisdiction of all lower courts.
7. Venue is properly laid in this court as it is the resident county of Plaintiff and all relevant events occurred in Bronx County.
8. A Notice of Claim was timely served upon NYC on September 26, 2016, within ninety days of August 13, 2016, the date of accrual of the earliest of the causes of action. A 50 -H hearing was held December 20, 2016.
9. More than thirty days have passed since the Notice of Claim was served and there has been no resolution of the claim.
10. The instant action is being commenced within one year and ninety days of the date of accrual.

FACTS GIVING RISE TO THE CAUSES OF ACTION

11. On or about August 13, 2016, at approximately 7:30 p.m, Plaintiff was legally parked near the intersection of Forest Avenue and 161st Street in Bronx County.
12. He was approached by Defendant SUAREZ and some of the DOE officers who knocked on his window and asked him to step out of the vehicle.
13. Plaintiff complied with the request and was asked if he had been drinking alcohol. He replied that he had not and told the officers that he had just finished work as a taxi driver and that he simply was tired.
14. Defendant Suarez then arrested Plaintiff for Operating a Motor Vehicle While Under the Influence of Alcohol and transported him to the 45th Precinct IDTU for alcohol testing.
15. Plaintiff provided a breath sample which indicated that he had not consumed alcohol and agreed to and performed a physical coordination test.
16. In addition Plaintiff was compelled by Defendant Prodam to provide a urine sample, which was to be tested later.
17. Instead of releasing Plaintiff from custody Defendant Suarez instead took Plaintiff to Brooklyn where he met Defendant Grasso.
18. Defendant Grasso then performed a series of physical tests and claimed that Plaintiff was under the influence of a central nervous system depressant.
19. Plaintiff was then taken to Central Booking where he was charged with having Operated a Motor Vehicle Under the Influence of Alcohol or Drugs under Docket Number 2016BX035223.
20. Plaintiff was held in custody for an extended period of time and was ultimately

released on his own recognizance, but his New York State Driver's License was suspended by the Court.

21. Plaintiff returned to court on August 31, 2016 and at that time the charge against him was dismissed by the District Attorney.
22. Plaintiff lost his job as a result of this arrest and has suffered severe emotional injuries, including PTSD, for which he has sought and has received treatment.

FIRST CAUSE OF ACTION

23. Paragraphs 1 through 22 are incorporated herein pursuant to CPLR § 3014 with the same force and effect as if pleaded separately.
24. Plaintiff was arrested and unlawfully detained without his consent and without probable cause.
25. By reason thereof, Defendants SUAREZ, GRASSO and DOE 1-5, have caused Plaintiff to suffer the loss of his constitutional rights, emotional distress, mental anguish and monetary damages.
26. Because SUAREZ, GRASSO and the DOE Defendants acted within the scope their duties as members of the NYPD, Defendant CITY is also liable under this claim based on a theory of *respondeat superior*.

SECOND CAUSE OF ACTION

27. Paragraphs 1 through 26 are incorporated herein pursuant to CPLR § 3014 with the same force and effect as if pleaded separately.
28. By compelling Plaintiff to provide a urine sample without legal justification,

Plaintiff was subjected to an unlawful search and seizure by the defendants in violation of his Constitutional rights.

29. By reason thereof, Defendants SUAREZ, GRASSO and DOE 1-5, have caused Plaintiff to suffer the loss of his constitutional rights, emotional distress, mental anguish and monetary damages.
30. Because SUAREZ, GRASSO and the DOE Defendants acted within the scope their duties as members of the NYPD, Defendant CITY is also liable under this claim based on a theory of *respondeat superior*.

THIRD CAUSE OF ACTION

31. Paragraphs 1 through 30 are incorporated herein pursuant to CPLR § 3014 with the same force and effect as if pleaded separately.
32. Plaintiff was subjected to a malicious prosecution as a result of the false accusations by Defendants.
33. By reason thereof, Defendants SUAREZ, GRASSO and DOE 1-5, have caused Plaintiff to suffer the loss of his constitutional rights, emotional distress, mental anguish and monetary damages.
34. Because SUAREZ, GRASSO and the DOE Defendants acted within the scope their duties as members of the NYPD, Defendant CITY is also liable under this claim based on a theory of *respondeat superior*.

FOURTH CAUSE OF ACTION

35. Paragraphs 1 through 34 are incorporated herein pursuant to CPLR § 3014 with the same force and effect as if pleaded separately.

36. The individual Defendants conspired to violate, and aided and abetted in the violation of Plaintiff's rights under the Fourth, Fifth and Fourteenth Amendments of the United States Constitution, specifically Defendants violated Plaintiff's to liberty and due process of law.
37. By reason thereof, Defendants SUAREZ, GRASSO and DOE 1-5 have violated 42 U.S.C. §1983 and caused Plaintiff emotional suffering, mental anguish and monetary damages.

FIFTH CAUSE OF ACTION

38. Paragraphs 1 through 37 are incorporated herein pursuant to CPLR § 3014 with the same force and effect as if pleaded separately.
39. Plaintiff was arrested and unlawfully detained without his consent and without probable cause.
40. By reason thereof, Defendants SUAREZ, GRASSO and DOE 1-5 have violated 42 U.S.C. §1983 and caused Plaintiff emotional suffering, mental anguish and monetary damages.

SIXTH CAUSE OF ACTION

41. Paragraphs 1 through 40 are incorporated herein pursuant to CPLR § 3014 with the same force and effect as if pleaded separately.
42. By compelling Plaintiff to provide a urine sample without legal justification, Plaintiff was subjected to an unlawful search and seizure by the defendants in violation of his Constitutional rights.
43. By reason thereof, Defendants SUAREZ, GRASSO, PRODAM and DOE 1-5

have violated 42 U.S.C. §1983 and caused Plaintiff emotional suffering, mental anguish and monetary damages.

SEVENTH CAUSE OF ACTION

44. Paragraphs 1 through 43 are incorporated herein pursuant to CPLR § 3014 with the same force and effect as if pleaded separately.
45. Plaintiff was subjected to a malicious prosecution as a result of the false accusations by Defendants.
46. By reason thereof, Defendants SUAREZ, GRASSO and DOE 1-5, have caused Plaintiff to suffer the loss of his constitutional rights, emotional distress, mental anguish and monetary damages.
47. By reason thereof, Defendants SUAREZ, GRASSO and DOE 1-5 have violated 42 U.S.C. §1983 and caused Plaintiff emotional suffering, mental anguish and monetary damages.

WHEREFORE, the Plaintiff demands judgment against Defendants as follows:

- i) On the first cause of action, actual and punitive damages in an amount to be determined at trial;
- ii) On the second cause of action, actual and punitive damages in an amount to be determined at trial;
- iii) On the third cause of action, actual and punitive damages in an amount to be determined at trial;
- iv) On the fourth cause of action, actual and punitive damages in an amount to be determined at trial;
- v) On the fifth cause of action, actual and punitive damages in an amount to be determined at trial;

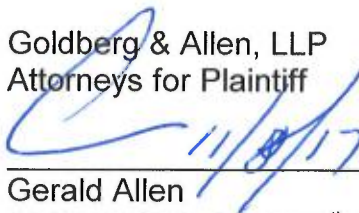
vi) On the sixth cause of action, actual and punitive damages in an amount to be determined at trial;

vii) On the seventh cause of action, actual and punitive damages in an amount to be determined at trial;

viii) Such other relief as the Court deems just and proper.

Dated: New York, New York
November 2, 2017

Goldberg & Allen, LLP
Attorneys for Plaintiff

By:  11/8/17

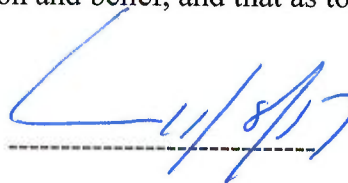
Gerald Allen
49 West 37th Street, 7th Floor
New York, New York 10018
(212) 766-3366

ATTORNEY'S VERIFICATION

STATE OF NEW YORK) ss:
COUNTY OF NEW YORK)

Gerald Allen, being duly sworn, affirms and says,

That I am an attorney in the law firm of Goldberg & Allen, LLP, counsel to the Plaintiff herein; and I make this verification because Plaintiff does not reside in the County where Affirmant maintains his Office and that I have read the foregoing Summons and Verified Complaint and knows the contents thereof; that same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matter I believes them to be true.



GERALD ALLEN